

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
DARION JACKSON, RANDY MCDONALD, SHARON
KIRKMAN, and LEONARD TAYLOR,

Plaintiffs,

SUMMONS

-against-

Index No.:

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ETHAN COOLEY, Shield No. 24949, NYPD POLICE
OFFICER DANIEL PALMINTERI, Shield No. 21071 and
POLICE OFFICER JOHN DOES NUMBERS ONE
THROUGH TEN,

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

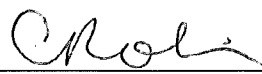
Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 6, 2020

Yours, etc.



CAITLIN ROBIN AND
ASSOCIATES PLLC
CAITLIN ROBIN, ESQ.
Attorney for Plaintiff
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(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER ETHAN COOLEY, Shield No. 24949, NYPD 79th
Precinct, 263 Thompson Avenue, Brooklyn, NY 11216

NYPD POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, NYPD
79th Precinct, 263 Thompson Avenue, Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DARION JACKSON, RANDY MCDONALD, SHARON
KIRKMAN, and LEONARD TAYLOR,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ETHAN COOLEY, Shield No. 24949, NYPD POLICE
OFFICER DANIEL PALMINTERI, Shield No. 21071 and
POLICE OFFICER JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

Plaintiff's DARION JACKSON, RANDY MCDONALD, SHARON KIRKMAN, and
LEONARD TAYLOR, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 3, 2019, at approximately 5:00 p.m., Plaintiffs, DARION JACKSON, RANDY MCDONALD, SHARON KIRKMAN, and LEONARD TAYLOR, while lawfully inside the lobby area of 1 Spencer Place, Brooklyn, New York, was subject to an unlawful search, false arrest, and false imprisonment by the Defendant New York City police officers. Plaintiffs were maliciously prosecuted and denied the right to due process and a fair trial until all charges against Plaintiffs were dismissed and sealed in their entirety on or about December 9, 2019. Plaintiffs were deprived of their constitutional and common law rights when the individual Defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied Plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DARION JACKSON is a resident of the State of New York.
3. Plaintiff RANDY MCDONALD is a resident of the State of New York.
4. Plaintiff SHARON KIRKMAN is a resident of the State of New York.
5. Plaintiff LEONARD TAYLOR is a resident of the State of New York.

6. NYPD POLICE OFFICER ETHAN COOLEY, Shield No. 24949, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. NYPD POLICE OFFICER ETHAN COOLEY, Shield No. 24949, was at all times relevant herein, assigned to the 79th Precinct.

8. NYPD POLICE OFFICER ETHAN COOLEY, Shield No. 24949, is being sued in his individual and official capacity.

9. NYPD POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. NYPD POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, was at all times relevant herein, assigned to the 79th Precinct.

11. NYPD POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officer John Does Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police

department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State Law and General Municipal Law Section 50, Plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H on February 20, 2020.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the Defendant, and/or Defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On November 3, 2019, at approximately 5:00 p.m., Plaintiffs were lawfully present inside the lobby of 1 Spencer Place, Brooklyn, New York, when the defendant police officers unlawfully handcuffed and falsely arrested Plaintiffs without probable cause, or any legal justification.

22. Plaintiff Sharon Kirkman lives in Apt 2A in 1 Spencer Place, Brooklyn, New York.

23. Plaintiff Leonard Taylor's aunt, Deborah Ramsey, lives in Apt 2B in 1 Spencer Place, Brooklyn, New York.

24. Plaintiffs Randy McDonald and Darion Jackson were legally visiting Sharon Kirkman in Apt 2A at 1 Spencer Place.

25. Plaintiff Leonard Taylor was legally visiting his aunt in Apt 2B at 1 Spencer Place.

26. Plaintiff Sharon Kirkman was having people over to watch the New England Patriots in the NFL Playoffs.

27. At halftime, Plaintiffs left Sharon Kirkman's apartment to go to the grocery store to get more food and beverages.

28. While Plaintiffs were in the lobby of 1 Spencer Place, Defendant Police Officers entered the building.

29. Defendant Police Officers told the Plaintiffs that they were trespassing.

30. Plaintiff Kirkman said he lives in the building if he could get his Identification from his apartment, one floor up.

31. Defendant Police Officers did not allow Plaintiff Kirkman to get his identification to prove he lives in the building.

32. Plaintiff Taylor said he was visiting his aunt, but Defendant Police Officers did not allow Plaintiff Taylor to show them his aunt's apartment.

33. Plaintiffs Jackson and McDonald told the Police Officers they were visiting Plaintiff Kirkman.

34. Defendant officers grabbed all the Plaintiffs and unlawfully handcuffed them.

35. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

36. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

37. At no point in time did Plaintiffs resist arrest in any way.

38. Plaintiffs were searched, and no contraband or anything illegal was found on them.

39. Plaintiffs were transported to the 79th Precinct for processing.

40. Plaintiffs were then transported to Kings County Central Bookings.

41. At Central Bookings, Plaintiff Sharon Kirkman was released because the Kings County District Attorneys office declined to prosecute him for trespass, because he lived at the arrest location.

42. The Defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that the other three Plaintiffs committed the crime of Trespass.

43. On November 4, 2019, after approximately 24 hours in unlawful custody, Plaintiffs were arraigned in Kings County Criminal Court, and charged with crimes that the Defendant officers had no basis to alleged that they committed.

44. Plaintiffs were unlawfully charged with Trespass.

45. A Judge released Plaintiffs on their own recognizance.

46. After being released, Plaintiffs got affidavits from Sharon Kirkman and Deborah Ramsey that Plaintiffs were visiting them and allowed to be at 1 Spencer Place.

47. All charges against Plaintiffs were dismissed and sealed on or about December 9, 2019.

48. Some of the police officer Defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting and imprisoning, denying the right to due process and a fair trial, and maliciously prosecuting of plaintiff.

49. The unlawful, search, seizure, false arrest and imprisonment, denial of the right to a fair trial, and malicious prosecution of Plaintiffs by the individually named Defendants caused Plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

50. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The individually named police officer Defendants while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

52. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined Plaintiffs, and Plaintiffs was conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

59. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop and search employed by Defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search Plaintiffs.

62. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

66. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein

67. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

68. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

69. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

70. In withholding/creating false evidence against Plaintiffs DARION JACKSON, RANDY MCDONALD, SHARON KIRKMAN, and LEONARD TAYLOR, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

71. As a result of the foregoing, Plaintiffs DARION JACKSON, RANDY MCDONALD, SHARON KIRKMAN, and LEONARD TAYLOR, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of their constitutional rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

75. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

77. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

78. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

82. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

84. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

85. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

87. Defendants failed to intervene to prevent the unlawful conduct described herein.

88. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to other physical constraints.

89. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

93. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The acts and conduct of the Defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

95. Defendants commenced and continued a criminal proceeding against Plaintiffs.

96. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which they were prosecuted.

97. The prosecution and criminal proceedings terminated in Plaintiffs' favor on the aforementioned dates.

98. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiffs' Fourth Amendment rights.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

101. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

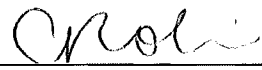
102. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs DARION JACKSON, RANDY MCDONALD, SHARON KIRKMAN, and LEONARD TAYLOR demand judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the

jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 6, 2020

By: 
CAITLIN ROBIN AND
ASSOCIATES PLLC
CAITLIN ROBIN, ESQ.
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER ETHAN COOLEY, Shield No. 24949, NYPD
79th Precinct, 263 Thompson Avenue, Brooklyn, NY 11216

NYPD POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, NYPD
79th Precinct, 263 Thompson Avenue, Brooklyn, NY 11216

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of CAITLIN ROBIN AND ASSOCIATES PLLC, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 6, 2020



CAITLIN ROBIN